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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Maryland

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:37:10 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c)
- The Lead Agency does not allow a child to retain eligibility when turning 13 years old during the required 12-month eligibility period, as required by 98.21(a)(1)(ii)(F). (Plan Question 2.5.2b)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	(1st Bullet) The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c): MSDE currently has a policy in place for this requirement. As a result, the Agency will submit an amendment request.	04/01/2025
2	(2nd Bullet) The Lead Agency does not allow a child to retain eligibility when turning 13 years old during the required 12-month eligibility period, as required by 98.21(a)(1)(ii)(F). (Plan Question 2.5.2b): The Scholarship Team will meet weekly with vendor to discuss programming requirements.	03/31/2025
3	(2nd Bullet) The Lead Agency does not allow a child to retain eligibility when turning 13 years old during the required 12-month eligibility period, as required by 98.21(a)(1)(ii)(F). (Plan Question 2.5.2b): The Scholarship Team will meet weekly with vendor to review programming requirements.	06/30/2025
4	(2nd Bullet) The Lead Agency does not allow a child to retain eligibility when turning 13 years old during the required 12-month eligibility period, as required by 98.21(a)(1)(ii)(F). (Plan Question 2.5.2b): : Programming development and user testing.	10/31/2025

5	(2nd Bullet) The Lead Agency does not allow a child to retain eligibility when turning 13 years old during the required 12-month eligibility period, as required by 98.21(a)(1)(ii)(F). (Plan Question 2.5.2b): Training of case management staff.	11/28/2025
6	(2nd Bullet) The Lead Agency does not allow a child to retain eligibility when turning 13 years old during the required 12-month eligibility period, as required by 98.21(a)(1)(ii)(F). (Plan Question 2.5.2b): Implementation.	12/31/2025

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through April 30, 2026.

Overall Target Completion Date: 04/30/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i): A CCDF Final Rule Transitional and Legislative Waiver request was submitted to the ACF.	12/23/2024
2	The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i): MSDE will meet and work with state and federal partners to explore long-term	01/31/2026

	solutions in order to come into compliance with this requirement. Meetings and discussions will take place over the next year.	
3	The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i): Once MSDE has a proposed solution, the plan of action will be discussed with stakeholders and leadership for additional guidance and feedback.	03/31/2026
4	The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i): MSDE will then implement the finalized plan of action.	04/30/2026

HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for licensed centers, licensed family child care homes, out-of-school programs, or license-exempt in-home care, as required by 98.41(a)(1)(vii). (Plan Questions 5.3.7iv, 5.3.7v, 5.3.7vi, 5.3.7viii, 5.3.7ix, and 5.3.7x)
- The Lead Agency does not require pre-service or orientation training on emergency preparedness and response planning and procedures for licensed centers, licensed family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1g)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes for compliance with a standard for emergency preparedness and response planning and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	(1st Bullet) The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for licensed centers, licensed family child care homes, out-of-school programs, or license-exempt in-home care, as required by 98.41(a)(1)(vii). (Plan Questions 5.3.7iv, 5.3.7v, 5.3.7vi, 5.3.7viii, 5.3.7ix, and 5.3.7x): MSDE will review and update the plan internally. In addition, add a link to the emergency prep. plan template onto the co-op plan as discussed with OCC.	04/30/2025
2	(1st Bullet) The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for licensed centers, licensed family child care homes, out-of-school programs, or license-exempt in-home care, as required by 98.41(a)(1)(vii). (Plan Questions 5.3.7iv, 5.3.7v, 5.3.7vi, 5.3.7viii, 5.3.7ix, and 5.3.7x): MSDE will then send the drafted updates to stakeholders and other supporting agencies as required for feedback. MSDE will also meet with stakeholders and supporting agencies during this time as well, as requested.	07/31/2025
3	(1st Bullet) The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for licensed centers, licensed family child care homes, out-of-school programs, or license-exempt in-home care, as required by 98.41(a)(1)(vii). (Plan Questions 5.3.7iv, 5.3.7v, 5.3.7vi, 5.3.7viii, 5.3.7ix, and 5.3.7x): Once the plan has been updated and approved by Leadership, MSDE will ensure to update staff and child care providers on the changes made. In addition, the Agency will revise policies (including orientations and training), applications/agreements, and inspection reports to mirror the changes made.	10/31/2025
4	(1st Bullet) The Lead Agency standard for emergency preparedness and response planning does not include all the required elements for licensed centers, licensed family child care	12/31/2025

	homes, out-of-school programs, or license-exempt in-home care, as required by 98.41(a)(1)(vii). (Plan Questions 5.3.7iv, 5.3.7v, 5.3.7vi, 5.3.7viii, 5.3.7ix, and 5.3.7x): The statewide plan, along with all required forms and applicable correspondence, will be posted it on its own webpage.	
5	(2nd Bullet) The Lead Agency does not require pre-service or orientation training on emergency preparedness and response planning and procedures for licensed centers, licensed family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1g): MSDE will review and update the plan internally. In addition, add a link to the emergency prep. plan template onto the co-op plan as discussed with OCC.	04/30/2025
6	(2nd Bullet) The Lead Agency does not require pre-service or orientation training on emergency preparedness and response planning and procedures for licensed centers, licensed family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1g): MSDE will then send the drafted updates to stakeholders and other supporting agencies as required for feedback. MSDE will also meet with stakeholders and supporting agencies during this time as well, as requested.	07/31/2025
7	(2nd Bullet) The Lead Agency does not require pre-service or orientation training on emergency preparedness and response planning and procedures for licensed centers, licensed family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1g): Once the plan has been updated and approved by Leadership, MSDE will ensure to update staff and child care providers on the changes made. In addition, the Agency will revise policies (including orientations and training), applications/agreements, and inspection reports to mirror the changes made.	10/31/2025
8	(2nd Bullet) The Lead Agency does not require pre-service or orientation training on emergency preparedness and response planning and	12/31/2025

	procedures for licensed centers, licensed family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1g): The statewide plan, along with all required forms and applicable correspondence, will be posted it on its own webpage.	
9	(3rd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes for compliance with a standard for emergency preparedness and response planning and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): MSDE will review and update the plan internally. In addition, add a link to the emergency prep. plan template onto the co-op plan as discussed with OCC.	04/30/2025
10	(3rd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes for compliance with a standard for emergency preparedness and response planning and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): MSDE will then send the drafted updates to stakeholders and other supporting agencies as required for feedback. MSDE will also meet with stakeholders and supporting agencies during this time as well, as requested.	07/31/2025
11	(3rd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes for compliance with a standard for emergency preparedness and response planning and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): Once the plan has been updated and approved by Leadership, MSDE will ensure to update staff and child care providers on the changes made. In addition, the Agency will revise policies (including orientations and training),	10/31/2025

	applications/agreements, and inspection reports to mirror the changes made.	
12	(3rd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes for compliance with a standard for emergency preparedness and response planning and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): The statewide plan, along with all required forms and applicable correspondence, will be posted it on its own webpage.	12/31/2025

EQUAL ACCESS:PAYMENT RATES

Reason(s) for non-compliance:

- The Lead Agency's market rate survey was not developed and conducted within two years of the date of submission of the CCDF Plan and therefore does not certify the percentiles reported in their CCDF Plan are based on the most recent MRS or ACF pre-approved Alternative Methodology, as required by 98.45(c)(1) and 98.45(f)(2)(i). (Plan Questions 4.2.1ai and 4.3.2b)
- The Lead Agency does not sufficiently address the methodology used to complete the narrow cost analysis or estimated cost of care, the variations in analysis, assumptions and data included in the methodology, or consideration of higher-quality care, as required by 98.45(f)(1)(ii). (Plan Questions 4.2.2a, 4.2.2b, 4.2.2c, and 4.2.2d)
- The Lead Agency's payment rates for infants in center-based care, infants in family child care homes, preschoolers in center-based care, and preschoolers in family child care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	(1st Bullet) The Lead Agency's market rate survey was not developed and conducted within two years of the date of submission of the CCDF Plan and therefore does not certify the percentiles reported in their CCDF Plan are based on the	05/30/2025

	most recent MRS or ACF pre-approved Alternative Methodology, as required by 98.45(c)(1) and 98.45(f)(2)(i). (Plan Questions 4.2.1ai and 4.3.2b): MSDE is reviewing the final Market Rate Survey (MRS) and Narrow Cost Analysis (NCA) provided by Prenatal to Five Fiscal Strategies for accuracy.	
2	(1st Bullet) The Lead Agency's market rate survey was not developed and conducted within two years of the date of submission of the CCDF Plan and therefore does not certify the percentiles reported in their CCDF Plan are based on the most recent MRS or ACF pre-approved Alternative Methodology, as required by 98.45(c)(1) and 98.45(f)(2)(i). (Plan Questions 4.2.1ai and 4.3.2b): MSDE will then share results of the draft report with leadership and other supporting agencies (Governor's office), in preparation of posting the information as required, once all parties agree on the results and implications.	08/29/2025
3	(1st Bullet) The Lead Agency's market rate survey was not developed and conducted within two years of the date of submission of the CCDF Plan and therefore does not certify the percentiles reported in their CCDF Plan are based on the most recent MRS or ACF pre-approved Alternative Methodology, as required by 98.45(c)(1) and 98.45(f)(2)(i). (Plan Questions 4.2.1ai and 4.3.2b): MSDE will make amendments to the State Plan based on the MRS and NCA. Then post the report as required.	09/30/2025
4	(2nd Bullet) The Lead Agency does not sufficiently address the methodology used to complete the narrow cost analysis or estimated cost of care, the variations in analysis, assumptions and data included in the methodology, or consideration of higher-quality care, as required by 98.45(f)(1)(ii). (Plan Questions 4.2.2a, 4.2.2b, 4.2.2c, and 4.2.2d): MSDE is reviewing the final Market Rate Survey (MRS) and Narrow Cost Analysis (NCA) provided by Prenatal to Five Fiscal Strategies for accuracy.	05/30/2025

5	(2nd Bullet) The Lead Agency does not sufficiently address the methodology used to complete the narrow cost analysis or estimated cost of care, the variations in analysis, assumptions and data included in the methodology, or consideration of higher-quality care, as required by 98.45(f)(1)(ii). (Plan Questions 4.2.2a, 4.2.2b, 4.2.2c, and 4.2.2d): MSDE will then share results of the draft report with leadership and other supporting agencies (Governor's office), in preparation of posting the information as required, once all parties agree on the results and implications.	08/29/2025
6	(2nd Bullet) The Lead Agency does not sufficiently address the methodology used to complete the narrow cost analysis or estimated cost of care, the variations in analysis, assumptions and data included in the methodology, or consideration of higher-quality care, as required by 98.45(f)(1)(ii). (Plan Questions 4.2.2a, 4.2.2b, 4.2.2c, and 4.2.2d): MSDE will make amendments to the State Plan based on the MRS and NCA. Then post the report as required.	09/30/2025
7	(3rd Bullet) The Lead Agency's payment rates for infants in center-based care, infants in family child care homes, preschoolers in center-based care, and preschoolers in family child care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a): MSDE is reviewing the final Market Rate Survey (MRS) and Narrow Cost Analysis (NCA) provided by Prenatal to Five Fiscal Strategies for accuracy.	05/30/2025
8	(3rd Bullet) The Lead Agency's payment rates for infants in center-based care, infants in family child care homes, preschoolers in center-based care, and preschoolers in family child care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a): MSDE will then share results of the draft report with leadership and other supporting agencies (Governor's office), in preparation of posting the information as required, once all parties agree on the results and implications.	08/29/2025
9	(3rd Bullet) The Lead Agency's payment rates for infants in center-based care, infants in family child	09/30/2025

	care homes, preschoolers in center-based care, and preschoolers in family child care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a): MSDE will make amendments to the State Plan based on the MRS and NCA. Then post the report as required.	
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HEALTH AND SAFETY:BUILDING AND PHYSICAL PREMISES SAFETY

Reason(s) for non-compliance:

- The Lead Agency standard for building and physical premises safety does not include the identification of and protection from hazards and bodies of water for license-exempt in-home care, and does not include the identification of and protection from vehicular traffic hazards for licensed centers, license-exempt in-home care, or out-of-school program providers, as required by 98.41(a)(1)(v). (Plan Questions 5.3.5avi, 5.3.5bvi, 5.3.5ci, 5.3.5cvi, and 5.3.5cvii)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	(1st Bullet) The Lead Agency standard for building and physical premises safety does not include the identification of and protection from hazards and bodies of water for license-exempt in-home care, and does not include the identification of and protection from vehicular traffic hazards for licensed centers, license-exempt in-home care, or out-of-school program providers, as required by 98.41(a)(1)(v). (Plan Questions 5.3.5avi, 5.3.5bvi, 5.3.5ci, 5.3.5cvi, and 5.3.5cvii): Scholarship (license-exempt) and Licensing will draft regulations (regarding identification of and protection from hazards and bodies of water and vehicular traffic hazards) during legislative session (January □ April 2025), which includes the review	04/30/2025

	and approval process from Leadership and Office of Attorney General (OAG).	
2	(1st Bullet) The Lead Agency standard for building and physical premises safety does not include the identification of and protection from hazards and bodies of water for license-exempt in-home care, and does not include the identification of and protection from vehicular traffic hazards for licensed centers, license-exempt in-home care, or out-of-school program providers, as required by 98.41(a)(1)(v). (Plan Questions 5.3.5avi, 5.3.5bvi, 5.3.5ci, 5.3.5cvi, and 5.3.5cvii): MSDE will obtain stakeholder feedback on the drafted regulations and make edits when necessary.	06/30/2025
3	(1st Bullet) The Lead Agency standard for building and physical premises safety does not include the identification of and protection from hazards and bodies of water for license-exempt in-home care, and does not include the identification of and protection from vehicular traffic hazards for licensed centers, license-exempt in-home care, or out-of-school program providers, as required by 98.41(a)(1)(v). (Plan Questions 5.3.5avi, 5.3.5bvi, 5.3.5ci, 5.3.5cvi, and 5.3.5cvii): The drafted regulations will begin the regulation promulgation process, which includes presentation to the Board of Education (Permission to Publish and Adopt) and the public comment period. Edits and revisions to the drafted regulations will occur during this timeframe.	12/31/2025
4	(1st Bullet) The Lead Agency standard for building and physical premises safety does not include the identification of and protection from hazards and bodies of water for license-exempt in-home care, and does not include the identification of and protection from vehicular traffic hazards for licensed centers, license-exempt in-home care, or out-of-school program providers, as required by 98.41(a)(1)(v). (Plan Questions 5.3.5avi, 5.3.5bvi, 5.3.5ci, 5.3.5cvi, and 5.3.5cvii): MSDE will ensure to update staff and child care providers on the new requirements. In addition, the Agency will revise policies (including orientations and training), applications/agreements, and inspection reports to mirror the changes made. This step will	12/31/2025

	take place simultaneously with Step 3, pending the outcome of regulation promulgation process.	
5	(2nd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): Scholarship (license-exempt) and Licensing will draft regulations (regarding identification of and protection from hazards and bodies of water and vehicular traffic hazards) during legislative session (January □ April 2025), which includes the review and approval process from Leadership and Office of Attorney General (OAG).	04/30/2025
6	(2nd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): MSDE will obtain stakeholder feedback on the drafted regulations and make edits when necessary.	06/30/2025
7	(2nd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): The drafted regulations will begin the regulation promulgation process, which includes presentation to the Board of Education (Permission to Publish and Adopt) and the public	12/31/2025

	comment period. Edits and revisions to the drafted regulations will occur during this timeframe.	
8	(2nd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): MSDE will ensure to update staff and child care providers on the new requirements. In addition, the Agency will revise policies (including orientations and training), applications/agreements, and inspection reports to mirror the changes made. This step will take place simultaneously with Step 3, pending the outcome of regulation promulgation process.	12/31/2025

HEALTH AND SAFETY: HANDLING AND STORAGE OF HAZARDOUS MATERIALS AND DISPOSAL OF BIOCONTAMINANTS

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the handling and storage of hazardous materials and the appropriate disposal of biocontaminants for license-exempt in-home care, as required by 98.41(a)(1)(viii). (Plan Questions 5.3.8avi and 5.3.8bvi)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency has not established a standard for the handling and storage of hazardous materials and the appropriate disposal of biocontaminants for license-exempt in-home care, as required by 98.41(a)(1)(viii). (Plan Questions 5.3.8avi and 5.3.8bvi): Scholarship (license-exempt) will draft regulations (the handling and storage of hazardous materials and the appropriate disposal of bio contaminants) during	04/30/2025

	legislative session (January □ April 2025), which includes the review and approval process from Leadership and Office of Attorney General (OAG).	
2	The Lead Agency has not established a standard for the handling and storage of hazardous materials and the appropriate disposal of biocontaminants for license-exempt in-home care, as required by 98.41(a)(1)(viii). (Plan Questions 5.3.8avi and 5.3.8bvi): MSDE will obtain stakeholder feedback on the drafted regulations and make edits when necessary.	06/30/2025
3	The Lead Agency has not established a standard for the handling and storage of hazardous materials and the appropriate disposal of biocontaminants for license-exempt in-home care, as required by 98.41(a)(1)(viii). (Plan Questions 5.3.8avi and 5.3.8bvi): The drafted regulations will begin the regulation promulgation process, which includes presentation to the Board of Education (Permission to Publish and Adopt) and the public comment period. Edits and revisions to the drafted regulations will occur during this timeframe.	12/31/2025
4	The Lead Agency has not established a standard for the handling and storage of hazardous materials and the appropriate disposal of biocontaminants for license-exempt in-home care, as required by 98.41(a)(1)(viii). (Plan Questions 5.3.8avi and 5.3.8bvi): MSDE will ensure to update staff and child care providers on the new requirements. In addition, the Agency will revise policies (including orientations and training), applications/agreements, and inspection reports to mirror the changes made. This step will take place simultaneously with Step 3, pending the outcome of regulation promulgation process.	12/31/2025

HEALTH AND SAFETY:ONGOING TRAINING

Reason(s) for non-compliance:

- The Lead Agency does not require an annual unannounced inspection for licensed centers for compliance with ongoing training requirements, as required by 98.44(b)(2)(i). (Plan Question 5.5.1aii)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require an annual unannounced inspection for licensed centers for compliance with ongoing training requirements, as required by 98.44(b)(2)(i). (Plan Question 5.5.1aii): Scholarship (license-exempt) and Licensing (Letter of Compliance) will draft regulations (for compliance with ongoing training requirements) during legislative session (January ☐ April 2025), which includes the review and approval process from Leadership and Office of Attorney General (OAG).	04/30/2025
2	The Lead Agency does not require an annual unannounced inspection for licensed centers for compliance with ongoing training requirements, as required by 98.44(b)(2)(i). (Plan Question 5.5.1aii): MSDE will obtain stakeholder feedback on the drafted regulations and make edits when necessary.	06/30/2025
3	The Lead Agency does not require an annual unannounced inspection for licensed centers for compliance with ongoing training requirements, as required by 98.44(b)(2)(i). (Plan Question 5.5.1aii): The drafted regulations will begin the regulation promulgation process, which includes presentation to the Board of Education (Permission to Publish and Adopt) and the public comment period. Edits and revisions to the drafted regulations will occur during this timeframe.	12/31/2025
4	The Lead Agency does not require an annual unannounced inspection for licensed centers for compliance with ongoing training requirements, as required by 98.44(b)(2)(i). (Plan Question 5.5.1aii): MSDE will ensure to update staff and child care providers on the new requirements. In addition, the Agency will revise policies (including	12/31/2025

	orientations and training), applications/agreements, and inspection reports to mirror the changes made. This step will take place simultaneously with Step 3, pending the outcome of regulation promulgation process.	
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HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all license-exempt in-home providers, as required by 98.33(a)(4). (Plan Question 5.5.4aii)
- The Lead Agency does not post pre-licensing inspection reports for licensed centers or licensed family child care providers, as required by 98.33(a)(4). (Plan Question 5.5.4ai)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	(1st Bullet) The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all license-exempt in-home providers, as required by 98.33(a)(4). (Plan Question 5.5.4aii): The Scholarship Team will meet weekly with vendor to discuss programming requirements regarding the transition to electronic inspection forms for license exempt providers, which will be aligned (a similar format design) with the form that is currently used for the monitoring and tracking of licensed providers. In the meantime, MSDE will send out notifications to all child care programs that initial inspections will be posted publicly starting in 2025.	03/31/2025
2	(1st Bullet) The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all license-exempt in-home providers, as required by 98.33(a)(4). (Plan Question 5.5.4aii): The Scholarship Team will meet weekly with vendor to	06/30/2025

	review programming requirements for the electronic inspection forms for license exempt providers. In addition, Licensing will work with the vendor to incorporate pre-licensing (initial) inspection reports on to checkccmd.org, once an applicant (child care program) is approved for child care. Vendor will test out the roll-over in data before full implementation.	
3	(1st Bullet) The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all license-exempt in-home providers, as required by 98.33(a)(4). (Plan Question 5.5.4aii): Programming development and user testing of the electronic inspection forms for license exempt providers, along with testing of the roll-over pre-licensing (initial) inspection reports for licensed child care programs.	10/31/2025
4	(1st Bullet) The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all license-exempt in-home providers, as required by 98.33(a)(4). (Plan Question 5.5.4aii): Training of (Scholarship) case management staff and licensing staff.	11/28/2025
5	(1st Bullet) The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all license-exempt in-home providers, as required by 98.33(a)(4). (Plan Question 5.5.4aii): Implementation of both requirements (electronic inspection forms for license exempt providers and roll over in pre-licensing data for licensed providers) to ensure all monitoring inspection reports are posted, as required.	12/31/2025
6	(2nd Bullet) The Lead Agency does not post pre-licensing inspection reports for licensed centers or licensed family child care providers, as required by 98.33(a)(4). (Plan Question 5.5.4ai): The Scholarship Team will meet weekly with vendor to discuss programming requirements regarding the transition to electronic inspection forms for license exempt providers, which will be aligned (a similar format design) with the form that is currently used	03/31/2025

	for the monitoring and tracking of licensed providers. In the meantime, MSDE will send out notifications to all child care programs that initial inspections will be posted publicly starting in 2025.	
7	(2nd Bullet) The Lead Agency does not post pre-licensing inspection reports for licensed centers or licensed family child care providers, as required by 98.33(a)(4). (Plan Question 5.5.4ai): The Scholarship Team will meet weekly with vendor to review programming requirements for the electronic inspection forms for license exempt providers. In addition, Licensing will work with the vendor to incorporate pre-licensing (initial) inspection reports on to checkccmd.org, once an applicant (child care program) is approved for child care. Vendor will test out the roll-over in data before full implementation.	06/30/2025
8	(2nd Bullet) The Lead Agency does not post pre-licensing inspection reports for licensed centers or licensed family child care providers, as required by 98.33(a)(4). (Plan Question 5.5.4ai): Programming development and user testing of the electronic inspection forms for license exempt providers, along with testing of the roll-over pre-licensing (initial) inspection reports for licensed child care programs.	10/31/2025
9	(2nd Bullet) The Lead Agency does not post pre-licensing inspection reports for licensed centers or licensed family child care providers, as required by 98.33(a)(4). (Plan Question 5.5.4ai): Training of (Scholarship) case management staff and licensing staff.	11/28/2025
10	(2nd Bullet) The Lead Agency does not post pre-licensing inspection reports for licensed centers or licensed family child care providers, as required by 98.33(a)(4). (Plan Question 5.5.4ai): Implementation of both requirements (electronic inspection forms for license exempt providers and roll over in pre-licensing data for licensed providers) to ensure all monitoring inspection reports are posted, as required.	12/31/2025

HEALTH AND SAFETY:PRECAUTIONS IN TRANSPORTING CHILDREN

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for precautions in transporting children for license-exempt in-home care, as required by 98.41(a)(1)(ix). (Plan Question 5.3.9vi)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency has not established a standard for precautions in transporting children for license-exempt in-home care, as required by 98.41(a)(1)(ix). (Plan Question 5.3.9vi): Scholarship (license-exempt) will draft regulations (for precautions in transporting children) during legislative session (January □ April 2025), which includes the review and approval process from Leadership and Office of Attorney General (OAG).	04/30/2025
2	The Lead Agency has not established a standard for precautions in transporting children for license-exempt in-home care, as required by 98.41(a)(1)(ix). (Plan Question 5.3.9vi): MSDE will obtain stakeholder feedback on the drafted regulations and make edits when necessary.	06/30/2025
3	The Lead Agency has not established a standard for precautions in transporting children for license-exempt in-home care, as required by 98.41(a)(1)(ix). (Plan Question 5.3.9vi): The drafted regulations will begin the regulation promulgation process, which includes presentation to the Board of Education (Permission to Publish and Adopt) and the public comment period. Edits and revisions to the drafted regulations will occur during this timeframe.	12/31/2025
4	The Lead Agency has not established a standard for precautions in transporting children for license-exempt in-home care, as required by 98.41(a)(1)(ix). (Plan Question 5.3.9vi): MSDE will	12/31/2025

	ensure to update staff and child care providers on the new requirements. In addition, the Agency will revise policies (including orientations and training), applications/agreements, and inspection reports to mirror the changes made. This step will take place simultaneously with Step 3, pending the outcome of regulation promulgation process.	
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HEALTH AND SAFETY:SUDDEN INFANT DEATH SYNDROME AND SAFE SLEEP

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention of sudden infant death syndrome and use of safe sleep practices for license-exempt in-home care, as required by 98.41(a)(1)(ii). (Plan Question 5.3.2vi)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency has not established a standard for the prevention of sudden infant death syndrome and use of safe sleep practices for license-exempt in-home care, as required by 98.41(a)(1)(ii). (Plan Question 5.3.2vi): Scholarship (license-exempt) will draft regulations (for the prevention of sudden infant death syndrome and use of safe sleep practices) during legislative session (January □ April 2025), which includes the review and approval process from Leadership and Office of Attorney General (OAG).	04/30/2025
2	The Lead Agency has not established a standard for the prevention of sudden infant death syndrome and use of safe sleep practices for license-exempt in-home care, as required by 98.41(a)(1)(ii). (Plan Question 5.3.2vi): MSDE will obtain stakeholder feedback on the drafted regulations and make edits when necessary.	06/30/2025
3	The Lead Agency has not established a standard for the prevention of sudden infant death	12/31/2025

	syndrome and use of safe sleep practices for license-exempt in-home care, as required by 98.41(a)(1)(ii). (Plan Question 5.3.2vi): The drafted regulations will begin the regulation promulgation process, which includes presentation to the Board of Education (Permission to Publish and Adopt) and the public comment period. Edits and revisions to the drafted regulations will occur during this timeframe.	
4	The Lead Agency has not established a standard for the prevention of sudden infant death syndrome and use of safe sleep practices for license-exempt in-home care, as required by 98.41(a)(1)(ii). (Plan Question 5.3.2vi): MSDE will ensure to update staff and child care providers on the new requirements. In addition, the Agency will revise policies (including orientations and training), applications/agreements, and inspection reports to mirror the changes made. This step will take place simultaneously with Step 3, pending the outcome of regulation promulgation process.	12/31/2025

HEALTH AND SAFETY:PREVENTION AND CONTROL OF INFECTIOUS DISEASES

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers, licensed family child care homes, or license-exempt in-home providers as required by 98.44(b)(1)(i). (Plan Question 5.4.1a)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to prevention and control of infectious diseases (including immunizations), as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
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1	(1st Bullet)The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers, licensed family child care homes, or license-exempt in-home providers as required by 98.44(b)(1)(i). (Plan Question 5.4.1a): Scholarship (license-exempt) and Licensing (Family) will draft regulations (prevention and control of infectious diseases, including immunizations/grace period and religious exemption requirements) during legislative session (January □ April 2025), which includes the review and approval process from Leadership and Office of Attorney General (OAG). In addition, MSDE will revise the pre-service or orientation training (Maryland's Basic Health & Safety Training) for both licensed providers and licensed exempt providers to include prevention and control of infectious diseases, inclusive of immunizations/grace period.	04/30/2024
2	(1st Bullet)The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers, licensed family child care homes, or license-exempt in-home providers as required by 98.44(b)(1)(i). (Plan Question 5.4.1a): Please note MSDE will also work on revising the monitoring inspection reports for licensed and licensed exempt providers to ensure health and safety and fire requirements are monitored annually as required. MSDE will then obtain stakeholder feedback on the drafted regulations and make edits when necessary.	08/29/2025
3	(1st Bullet)The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers, licensed family child care homes, or license-exempt in-home providers as required by 98.44(b)(1)(i). (Plan Question 5.4.1a): The drafted regulations will begin the regulation promulgation process, which includes presentation to the Board of Education (Permission to Publish and Adopt) and the public comment period. Edits and revisions to	12/31/2025

	the drafted regulations will occur during this timeframe.	
4	(1st Bullet) The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers, licensed family child care homes, or license-exempt in-home providers as required by 98.44(b)(1)(i). (Plan Question 5.4.1a): MSDE will ensure to update staff and child care providers on the new requirements and changes to the monitoring inspection forms. In addition, the Agency will revise policies (including orientations and training), applications/agreements. This step will take place simultaneously with Step 3, pending the outcome of regulation promulgation process.	12/31/2025
5	(2nd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to prevention and control of infectious diseases (including immunizations), as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): Scholarship (license-exempt) and Licensing (Family) will draft regulations (prevention and control of infectious diseases, including immunizations/grace period and religious exemption requirements) during legislative session (January – April 2025), which includes the review and approval process from Leadership and Office of Attorney General (OAG). In addition, MSDE will revise the pre-service or orientation training (Maryland's Basic Health & Safety Training) for both licensed providers and licensed exempt providers to include prevention and control of infectious diseases, inclusive of immunizations/grace period.	04/30/2025
6	(2nd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to prevention and control of infectious diseases (including immunizations), as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): Please note MSDE will also	08/29/2025

	work on revising the monitoring inspection reports for licensed and licensed exempt providers to ensure health and safety and fire requirements are monitored annually as required. MSDE will then obtain stakeholder feedback on the drafted regulations and make edits when necessary.	
7	(2nd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to prevention and control of infectious diseases (including immunizations), as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): The drafted regulations will begin the regulation promulgation process, which includes presentation to the Board of Education (Permission to Publish and Adopt) and the public comment period. Edits and revisions to the drafted regulations will occur during this timeframe.	12/31/2025
8	(2nd Bullet) The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to prevention and control of infectious diseases (including immunizations), as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii): MSDE will ensure to update staff and child care providers on the new requirements and changes to the monitoring inspection forms. In addition, the Agency will revise policies (including orientations and training), applications/agreements. This step will take place simultaneously with Step 3, pending the outcome of regulation promulgation process.	12/31/2025

COMPREHENSIVE BACKGROUND CHECK:5 YEAR RENEWAL

Reason(s) for non-compliance:

- The Lead Agency does not conduct all background checks every 5 years, as required by 98.43(d)(2)(ii). (Plan Question 5.7.17)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not conduct all background checks every 5 years, as required by 98.43(d)(2)(ii). (Plan Question 5.7.17): MSDE is awaiting feedback regarding the statement of work (SOW) and MOU (Memorandum of Understanding) submitted to the Department of Public Safety and Correctional Services (DPSCS) and the Maryland Department of State Police (MDSP), for review, which will bring MSDE one step closer to being in compliance with NCIC NSOR requirements. Please note MSDE cannot mandate the targeted date of completion on our end because both the DPSCS and MDSP are not under our governance; however, implementation will take place once all contracts and agreements have been finalized.	06/30/2025
2	The Lead Agency does not conduct all background checks every 5 years, as required by 98.43(d)(2)(ii). (Plan Question 5.7.17): Once the SOW and MOU are approved, the MDSP must then send a SOW to DPSCS for exchange of data and communications between the two agencies, which will further bring MSDE one step closer to being in compliance with NCIC NSOR requirements. Please note MSDE cannot mandate the targeted date of completion on our end because both the DPSCS and MDSP are not under our governance; however, implementation will take place once all contracts and agreements have been finalized.	11/28/2025
3	The Lead Agency does not conduct all background checks every 5 years, as required by 98.43(d)(2)(ii). (Plan Question 5.7.17): MSDE will await further directives from both supporting agencies. Ideally, once both supporting agencies agree to the terms and conditions of the agreements drafted, MDSP would provide MSDE with NCIC NSOR information regarding every individual associated with a child care program throughout Maryland. Please note MSDE cannot	12/31/2025

	mandate the targeted date of completion on our end because both the DPSCS and MDSP are not under our governance; however, implementation will take place once all contracts and agreements have been finalized.	
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LEAD AGENCY RESPONSIBILITIES: PROGRAM ADMINISTRATION, PLAN DEVELOPMENT, AND PROGRAM/FUNDING COORDINATION

Reason(s) for non-compliance:

- The Lead Agency did not develop a Statewide Disaster Plan in collaboration with the required entities, and does not include all required elements, as required by 98.16(dd)(1), 98.16(dd)(2)(iii)(A), and 98.16(dd)(2)(iii)(B). (Plan Questions 8.5.1bi, 8.5.1bv, 8.5.1bvi, and 8.5.1bvii)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency did not develop a Statewide Disaster Plan in collaboration with the required entities, and does not include all required elements, as required by 98.16(dd)(1), 98.16(dd)(2)(iii)(A), and 98.16(dd)(2)(iii)(B). (Plan Questions 8.5.1bi, 8.5.1bv, 8.5.1bvi, and 8.5.1bvii): MSDE will review and update the plan internally. In addition, add a link to the emergency prep. plan template onto the COOP plan as discussed with OCC.	04/30/2025
2	The Lead Agency did not develop a Statewide Disaster Plan in collaboration with the required entities, and does not include all required elements, as required by 98.16(dd)(1), 98.16(dd)(2)(iii)(A), and 98.16(dd)(2)(iii)(B). (Plan Questions 8.5.1bi, 8.5.1bv, 8.5.1bvi, and 8.5.1bvii): MSDE will then send the drafted updates to stakeholders and other supporting agencies as required for feedback. MSDE will also	07/31/2025

	meet with stakeholders and supporting agencies during this time as well, as requested.	
3	The Lead Agency did not develop a Statewide Disaster Plan in collaboration with the required entities, and does not include all required elements, as required by 98.16(dd)(1), 98.16(dd)(2)(iii)(A), and 98.16(dd)(2)(iii)(B). (Plan Questions 8.5.1bi, 8.5.1bv, 8.5.1bvi, and 8.5.1bvii): Once the plan has been updated and approved by Leadership, MSDE will ensure to update staff and child care providers on the changes made. In addition, the Agency will revise policies (including orientations and training), applications/agreements, and inspection reports to mirror the changes made.	10/31/2025
4	The Lead Agency did not develop a Statewide Disaster Plan in collaboration with the required entities, and does not include all required elements, as required by 98.16(dd)(1), 98.16(dd)(2)(iii)(A), and 98.16(dd)(2)(iii)(B). (Plan Questions 8.5.1bi, 8.5.1bv, 8.5.1bvi, and 8.5.1bvii): The statewide plan, along with all required forms and applicable correspondence, will be posted on its own webpage.	12/31/2025

COMPREHENSIVE BACKGROUND CHECK:NATIONAL NAME-BASED

Reason(s) for non-compliance:

- The Lead Agency does not require and conduct NCIC NSOR name-based background checks for all child care staff members (including prospective staff members), as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.3a and 5.7.3b)
- The Lead Agency does not require and conduct NCIC NSOR name-based checks for all individuals age 18 or older who reside in a family child care home, as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.3c)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	(1st Bullet) The Lead Agency does not require and conduct NCIC NSOR name-based background checks for all child care staff members (including prospective staff members), as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.3a and 5.7.3b): MSDE is awaiting feedback regarding the statement of work (SOW) and MOU (Memorandum of Understanding) submitted to the Department of Public Safety and Correctional Services (DPSCS) and the Maryland Department of State Police (MDSP), for review, which will bring MSDE one step closer to being in compliance with NCIC NSOR requirements. Please note MSDE cannot mandate the targeted date of completion on our end because both the DPSCS and MDSP are not under our governance; however, implementation will take place once all contracts and agreements have been finalized.	06/30/2025
2	(1st Bullet) The Lead Agency does not require and conduct NCIC NSOR name-based background checks for all child care staff members (including prospective staff members), as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.3a and 5.7.3b): Once the SOW and MOU are approved, the MDSP must then send a SOW to DPSCS for exchange of data and communications between the two agencies, which will further bring MSDE one step closer to being in compliance with NCIC NSOR requirements. Please note MSDE cannot mandate the targeted date of completion on our end because both the DPSCS and MDSP are not under our governance; however, implementation will take place once all contracts and agreements have been finalized.	11/28/2025
3	(1st Bullet) The Lead Agency does not require and conduct NCIC NSOR name-based background checks for all child care staff members (including prospective staff members), as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.3a and 5.7.3b): MSDE will await further directives from both	12/31/2025

	supporting agencies. Ideally, once both supporting agencies agree to the terms and conditions of the agreements drafted, MDSP would provide MSDE with NCIC NSOR information regarding every individual associated with a child care program throughout Maryland. Please note MSDE cannot mandate the targeted date of completion on our end because both the DPSCS and MDSP are not under our governance; however, implementation will take place once all contracts and agreements have been finalized.	
4	(2nd Bullet) The Lead Agency does not require and conduct NCIC NSOR name-based checks for all individuals age 18 or older who reside in a family child care home, as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.3c): MSDE is awaiting feedback regarding the statement of work (SOW) and MOU (Memorandum of Understanding) submitted to the Department of Public Safety and Correctional Services (DPSCS) and the Maryland Department of State Police (MDSP), for review, which will bring MSDE one step closer to being in compliance with NCIC NSOR requirements. Please note MSDE cannot mandate the targeted date of completion on our end because both the DPSCS and MDSP are not under our governance; however, implementation will take place once all contracts and agreements have been finalized.	06/30/2025
5	(2nd Bullet) The Lead Agency does not require and conduct NCIC NSOR name-based checks for all individuals age 18 or older who reside in a family child care home, as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.3c): Once the SOW and MOU are approved, the MDSP must then send a SOW to DPSCS for exchange of data and communications between the two agencies, which will further bring MSDE one step closer to being in compliance with NCIC NSOR requirements. Please note MSDE cannot mandate the targeted date of completion on our end because both the DPSCS and MDSP are not under our governance; however, implementation will take place once all contracts and agreements have been finalized.	11/28/2025

6	(2nd Bullet) The Lead Agency does not require and conduct NCIC NSOR name-based checks for all individuals age 18 or older who reside in a family child care home, as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.3c): MSDE will await further directives from both supporting agencies. Ideally, once both supporting agencies agree to the terms and conditions of the agreements drafted, MDSP would provide MSDE with NCIC NSOR information regarding every individual associated with a child care program throughout Maryland. Please note MSDE cannot mandate the targeted date of completion on our end because both the DPSCS and MDSP are not under our governance; however, implementation will take place once all contracts and agreements have been finalized.	12/31/2025
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CONSUMER EDUCATION:WEBSITE AND RESOURCES FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not include the date the detailed report containing the results of the MRS or ACF pre-approved alternative methodology and the Narrow Cost Analysis was completed, made widely available, or was posted. Additionally, the Lead Agency does not describe their response to partner views and comments on the detailed report, as required by 98.45(f)(1) and 98.45(f)(1)(iii). (Plan Questions 4.2.3i, 4.2.3ii, 4.2.3iii, and 4.2.3iv)
- The Lead Agency does not describe how its policies to prevent the suspension and expulsion of children from birth to age 5 in child care and other early childhood programs receiving CCDF funds are shared with families, providers, and the general public, as required by 98.33(b)(1)(v). (Plan Question 9.3.7a)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	(1st Bullet) The Lead Agency does not include the date the detailed report containing the results of the MRS or ACF pre-approved alternative methodology and the Narrow Cost Analysis was completed, made widely available, or was posted.	05/30/2025

	Additionally, the Lead Agency does not describe their response to partner views and comments on the detailed report, as required by 98.45(f)(1) and 98.45(f)(1)(iii). (Plan Questions 4.2.3i, 4.2.3ii, 4.2.3iii, and 4.2.3iv): MSDE is reviewing the final Market Rate Survey (MRS) and Narrow Cost Analysis (NCA) provided by Prenatal to Five Fiscal Strategies for accuracy.	
2	(1st Bullet) The Lead Agency does not include the date the detailed report containing the results of the MRS or ACF pre-approved alternative methodology and the Narrow Cost Analysis was completed, made widely available, or was posted. Additionally, the Lead Agency does not describe their response to partner views and comments on the detailed report, as required by 98.45(f)(1) and 98.45(f)(1)(iii). (Plan Questions 4.2.3i, 4.2.3ii, 4.2.3iii, and 4.2.3iv): MSDE will then share results of the draft report with leadership and other supporting agencies (Governor's office), in preparation of posting the information as required, once all parties agree on the results and implications.	08/29/2025
3	(1st Bullet) The Lead Agency does not include the date the detailed report containing the results of the MRS or ACF pre-approved alternative methodology and the Narrow Cost Analysis was completed, made widely available, or was posted. Additionally, the Lead Agency does not describe their response to partner views and comments on the detailed report, as required by 98.45(f)(1) and 98.45(f)(1)(iii). (Plan Questions 4.2.3i, 4.2.3ii, 4.2.3iii, and 4.2.3iv): MSDE will make amendments to the State Plan based on the MRS and NCA. Then post the report as required.	09/30/2025
4	(2nd Bullet) The Lead Agency does not describe how its policies to prevent the suspension and expulsion of children from birth to age 5 in child care and other early childhood programs receiving CCDF funds are shared with families, providers, and the general public, as required by 98.33(b)(1)(v). (Plan Question 9.3.7a): MSDE will conduct surveys from the child care community requesting their current practices/policies regarding suspension and expulsion, including	07/31/2025

	soft suspensions and expulsions, of children from birth to age 5 in child care and other early childhood. MSDE will also review and utilize Child Trends findings of providers' understanding of suspension and expulsion policy, based on the study they did as well. Overall Target Completion Date: December	
5	(2nd Bullet) The Lead Agency does not describe how its policies to prevent the suspension and expulsion of children from birth to age 5 in child care and other early childhood programs receiving CCDF funds are shared with families, providers, and the general public, as required by 98.33(b)(1)(v). (Plan Question 9.3.7a): Based on the feedback received, MSDE would then do some research and request TA from other states (and other school readiness divisions in MSDE) as to what practices they utilize to prevent the suspension and expulsion of children from birth to age 5 in child care and other early childhood.	12/31/2025
6	(2nd Bullet) The Lead Agency does not describe how its policies to prevent the suspension and expulsion of children from birth to age 5 in child care and other early childhood programs receiving CCDF funds are shared with families, providers, and the general public, as required by 98.33(b)(1)(v). (Plan Question 9.3.7a): Based on the ACF TA received, MSDE will then draft its own policy regarding the prevention of the suspension and expulsion of children from birth to age 5. The drafted policies would then be shared with stakeholders for feedback. Edits and revisions to the drafted regulations will occur during this timeframe. The drafted policies would then be submitted to leadership and the Maryland State Board of Education and the Accountability Implementation Board for review and approval.	07/31/2026
7	(2nd Bullet) The Lead Agency does not describe how its policies to prevent the suspension and expulsion of children from birth to age 5 in child care and other early childhood programs receiving CCDF funds are shared with families, providers, and the general public, as required by 98.33(b)(1)(v). (Plan Question 9.3.7a): MSDE will ensure to post information and policies in relation	12/31/2026

	to the prevention of the suspension and expulsion of children from birth to age 5. and update staff and child care providers on the new policy, while educating providers on the topic via meetings and/or listening sessions. If a regulations amendment is required, MSDE would then follow suit with making regulations amendments as well, throughout the process.	
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**QUALITY IMPROVEMENT AND SUPPORT FOR CHILD CARE
WORKFORCE:PROFESSIONAL DEVELOPMENT**

Reason(s) for non-compliance:

- The Lead Agency does not have an annual requirement for a minimum number of hours of ongoing professional development for licensed child care centers, as required by 98.44(b)(2). (Plan Question 6.3.1a)

Overall Target Completion Date: 12/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not have an annual requirement for a minimum number of hours of ongoing professional development for licensed child care centers, as required by 98.44(b)(2). (Plan Question 6.3.1a): Licensing (Letter of Compliance) will draft regulations (an annual requirement for a minimum number of hours of ongoing professional development for licensed child care centers) during legislative session (January □ April 2025), which includes the review and approval process from Leadership and Office of Attorney General (OAG).	04/30/2025
2	The Lead Agency does not have an annual requirement for a minimum number of hours of ongoing professional development for licensed child care centers, as required by 98.44(b)(2). (Plan Question 6.3.1a): MSDE will obtain	06/30/2025

	stakeholder feedback on the drafted regulations and make edits when necessary.	
3	The Lead Agency does not have an annual requirement for a minimum number of hours of ongoing professional development for licensed child care centers, as required by 98.44(b)(2). (Plan Question 6.3.1a): The drafted regulations will begin the regulation promulgation process, which includes presentation to the Board of Education (Permission to Publish and Adopt) and the public comment period. Edits and revisions to the drafted regulations will occur during this timeframe.	12/31/2025
4	The Lead Agency does not have an annual requirement for a minimum number of hours of ongoing professional development for licensed child care centers, as required by 98.44(b)(2). (Plan Question 6.3.1a): MSDE will ensure to update staff and child care providers on the new requirements. In addition, the Agency will revise policies (including orientations and training), applications/agreements, and inspection reports to mirror the changes made. This step will take place simultaneously with Step 3, pending the outcome of regulation promulgation process.	12/31/2025